

Recherche) for the compositions and the optical properties of the glass bottles all fell within the ranges defined in claim 1 of the patent in suit and that the results of the analyses were in sufficient agreement with each other to be reliable.

b) Evaluation of tests cited to prove that problem solved (Art. 56 EPC)

In T 1872/08 which concerned inventive step and the non-obvious solution of a problem based on an advantageous effect demonstrated by means of comparative tests, the Opposition Division had not deemed the tests provided by the applicant (appellant) to be relevant because the tests had been made with one specific printer on one specific paper, both different from the paper and the printer used in example 18 of document (D9). The board stated that, according to the established jurisprudence of the boards of appeal, "in the case where comparative tests are chosen to demonstrate an inventive step with an improved effect over a claimed area, the nature of the comparison with the closest state of the art must be such that **the effect** is convincingly shown to have its **origin in the distinguishing feature of the invention**. For this purpose it may be necessary to modify the elements of comparison so that they differ only by such a distinguishing feature ..." (T 197/86, OJ 1989, 371, point 6.1.3 of the Reasons). The board concluded in T 1872/08 that the comparative tests provided sufficient evidence that the problem was solved. –

In T 479/06 the board found that tests results cited by the proprietor to show that the problem was solved by the claimed solution and so established inventive step were **not conclusive**. It could not conclude on that basis that the technical problem had actually been solved, so the technical problem had to be redefined. (For another example, see T 1177/17, in which, because the respondent had not substantiated its submissions with any evidence other than the data reported in example 1 of the patent, a study in mice vaccinated with Influvac, the technical effect was not plausible, and so the effects were not taken into account in the formulation of the objective technical problem.)

In T 568/11 the board stated that the technical problem needed to be reformulated. One of the arguments of the patent proprietor was that the additional differences between the compositions to be compared were so minimal that they would have no influence on the properties of the composition.

Concerning also an effect not **attributable to** the distinguishing of feature, in T 71/09, the mere comparison of the two compositions was insufficient to demonstrate that the alleged effect had been caused by the claimed solution or that this effect had been produced across the entire claimed area. Indeed, the improved resistance of hair dye to shampoos might **be caused by other factors**. Improved durability of hair dye had not been established for all the claimed compositions.

In T 1127/10 (hair treatment), since there was no experimental data in any of the examples in the patent, the appellant had submitted a document reporting on two series of comparative tests. The board, however, found that the document's description of the test procedure and analysis of the results were deficient and insufficiently informative to demonstrate plausibly that such an improvement had been achieved (see also T 1962/12 and T 383/13: comparative examples deficient – improvement not plausibly

demonstrated). See also T.2371/13 (inventive step – **plausibility** of an effect alleged in the patent application – admissibility of comparative-test results filed after the filing date to demonstrate that effect).

The board in T.578/06, noting that the EPC does not require experimental proof for patentability, considered that the disclosure of experimental data or results in the application as filed and/or post-published evidence was not always required to establish that the claimed subject-matter solved the objective technical problem. This was particularly true where no substantiated doubt had been raised. In T.488/16 the board agreed with the appellant that it is not always required to include experimental data or results in an application (see T.578/06). It is, however, a *conditio sine qua non* that it is shown that the technical problem underlying the invention was at least plausibly solved at the filing date. If, as in the present case, the nature of the invention was such that it relied on a technical effect which was neither self-evident nor predictable nor based on a conclusive theoretical concept at least some technical evidence was required to show that a technical problem had indeed been solved (for a case where there was no need to file experimental evidence in relation to Art. 83 EPC, see for example T.416/14).

The Enlarged Board stated in R.9/14 that the petitioner was mistaken in believing that the deciding board had committed a serious procedural violation by not informing it of the correct sequence to be followed in the problem-solution approach and in the way it had applied the substantive law. The submission of comparative-test results to prove an effect or improvement was part of the problem-solution approach when establishing the problem over the closest prior art that is effectively solved by the claimed subject-matter. The petitioner's specialist knowledge of patent law should have told it that. There could thus be no question of a "surprise" or infringement of the right to be heard.

In R.16/13 the board – *ex officio* – questioned the probative value of comparative examples relied upon by the patent proprietor although their conclusiveness for demonstrating a technical effect of the claimed invention had not been disputed by the opponent. The decision of the board under review was set aside.

c) Evaluation – other tests

In *ex parte* case T.2340/12 the application related to a space energy implosion unit. In relation to sufficiency of disclosure, the appellant (applicant) claimed without citing a specific internet citation that over 40 000 internet citations could be found concerning "Space Energy", and it only referred to "indirect" measurements carried out on white rats or patients, but did not elaborate on the nature of these experiments or on their relevance for the claimed invention, despite having been invited to do so in the provisional opinion issued by the board. The criticisms raised by the examining division regarding the absence of a control group for the patients treated, the doubts regarding the statistical relevance of the experiments carried out, the absence of details as to the circumstances and the way the experiments were controlled, were justified.

In T.453/04 the board found the **experimental evidence** advanced by the appellant (opponent) to be defective for two reasons. Firstly, the teachings of the patent in suit were

not accurately replicated. Secondly, the product presented as representative of the prior art had not been shown to belong to the prior art. Thus the experimental evidence of the appellant did not demonstrate that the process steps set out in claim 1 of the main request resulted in products indistinguishable from those of the prior art.

In T 1248/08, in the application as filed, a number pertaining to a value used in example 1 was illegible and indecipherable. It was not clear whether it should read "0.08" or "0.09", or even "0.05". The board held that the arguments of the appellant adopting proof "on the balance of probability", in particular **a survey** in favour of the value of "0.09", had to fail. According to the survey conducted amongst partners and staff at the firm of the appellant's representative these results demonstrated that the value in question could not be considered to be "0.09" with a certainty "beyond reasonable doubt", as required by the established jurisprudence. In any event, a question of accuracy and disclosure could not be decided by a **poll** (see also chapter II.E.5. "Evidence and standard of proof for allowing amendments and corrections").

4.2.4 Archives and internet publications

In T 314/99 concerning the availability to the public of a diploma degree paper ("Diplomarbeit"), the board took the view that the paper had not become publicly available by its mere arrival in the archive of the Chemistry Department **Library** of the University. The **logbook** produced in evidence was a handwritten note book in which the diploma degree papers received in the archive were entered by the librarians. The logbook itself was not an official publication of the library but essentially an internal document of the library staff. After closer examination of the annotations in the logbook, the board said that it could not be concluded with certainty that the relevant entries had actually been made before the relevant priority date and it could not be ruled out that they had been added at a later time, when for one reason or another the time frame had become relevant. See also, with respect to a diploma thesis allegedly disclosed during an oral presentation, T 1057/09; and with respect to the value of a hand-written annotation from a librarian, T 915/12.

In T 91/98 the respondent (opponent) had challenged inventive step on the basis of document (8) which was an **entry from the Lexis-Nexis database**. The document did not, however, provide any evidence as to when this information had been entered into the database, i.e. as to when it had been made available to the public. Nor could the date of availability be taken as the date mentioned in the heading of the entry (September 3, 1985) as this latter date could not be equated to the distribution date of the information and was not even necessarily correct. After detailed evaluation of the declarations and affidavits filed by the respondent the board arrived at the conclusion that the date on which the information contained in document (8) had been made available to the public could not be unambiguously defined.

T 2284/13 (Wayback machine as prior art) the board accepted a combination of D5, an incomplete archive version of a web page (on the Wayback Machine web.archive.org; publicly available on 2004 with only small images) and D5', a recent download (2009) of the webpage (with full images) as evidence of a prior art publication. Accordingly, when

considering the prior art disclosure of D5, the expanded figure "the MRTT fuel system" shown in D5' also had to be regarded as forming part of that disclosure.

In T 1698/08 there was no reason for the board to exercise its discretion to refuse to admit the evidence, as it could neither be said that it was irrelevant nor that it was unnecessary. A refusal to admit could in any case not be based on statements in the document with respect to the **accuracy of the facts** it contained. Such statements related to the probative value of a document. Based on the principle of the free evaluation of evidence (G 3/97, OJ 1999, 245, point 5 of the Reasons), the board is free in assessing to what extent the information in a document is credible, whereby such a statement may play a role. Case T 1698/08, in respect of the disputed validity of an authorisation related to an (internet) **uncertified extract** from a commercial register.

In T 286/10 the board held that a merely general allegation that **digital libraries** were unreliable was not enough to cast doubt on the date on which a document stored with Internet Archive (www.archive.org) had become publicly available. It applied the usual standard of proof on the balance of probabilities (confirmed in T 2227/11, T 1711/11, T 353/14, T 545/08, T 1066/13). See also chapter J.C.3.2.3 "Internet disclosures".

4.2.5 Other written evidence

In T 332/87 a dated **internal paper**, marked as being confidential and not signed, was – together with an undated leaflet – not considered sufficient evidence. In T 595/89 the board decided that the opponent's in-house documents relating to the installation of a device in an aeroplane and to the sale thereof were not sufficient to prove public prior use.

In T 204/88 a **letter of tender** was not sufficient to prove public prior use because it was not discernible when and to whom the device was to be delivered and because the device was described in terms too general for anyone to identify whether it corresponded to the invention. In T 725/89 too, a dated tender was not regarded as sufficient evidence, as it was not proven when the tender had actually been presented, and the date of the tender was only one week prior to the priority date. By contrast, the board took the view in T 482/89 (OJ 1992, 646) that an **unsigned delivery note**, together with other documents, could constitute sufficient evidence of delivery.

In T 505/15 the board stated that the appellant's (opponent's) argument was credible that the **original** printed document was no longer available about 14 years after its creation, given that there was no obligation to keep the original paper version for more than 10 years. However, the board did not regard the lack of a signature as casting doubt on the content of the document. Firstly, the allegation of a legal requirement for signing such documents had not been substantiated. Secondly, even if the printed document was originally signed, it was unlikely that the electronically stored version of the document would contain such a signature. See also T 2466/13, which deals with both a failure to provide the originals of contracts assigning the right of priority and a mere allegation that a signature might have been forged.

In T.48/96 the board decided not to accept copies of pages from a **catalogue** bearing a date as sufficient proof of availability to the public. In order to prove the allegation that a particular apparatus described in a catalogue had been available to the public before the priority date, it was not sufficient to show that the catalogue had been published on time, because a mere indication in a catalogue did not constitute absolute proof that the described product had in fact been available to anybody; for example, there could have been a delay (see in this chapter III.G.4.3.4_a) for examples of cases concerning catalogues and commercial brochures, including T.1710/12, in which the board addressed the implications for the standard of proof where such a catalogue has not been produced in support of alleged prior use).

In T.905/94 the patent proprietor had exhibited a blind at an exhibition. After having considered the evidence regarding the exhibition the board looked at the question of whether use of the same **trade name** for different models could constitute evidence of the fact that the patent proprietor had marketed or described the blinds according to the patent at issue before the date of priority. In the board's opinion, such use could not constitute sufficient evidence since it was common practice in industry for the same name to be used and retained for a product, the technical characteristics of which changed over time as improvements were made. See also T.2020/13 on a change of trade name for prior-art products defined by that trade name.

In T.2357/12, concerning the transfer of opponent status and the concept of "universal succession", the board commented on the evaluation of evidence. The proprietor questioned the probative force of **private documents**, as submitted in this case, rather than public registration documents, as evidence of the transfer of opponent status in inter partes proceedings. The board stated that whereas **public registers** often enjoyed public trust regarding the facts registered and other public documents might be more conclusive on formal questions, the identity of the issuer and the date and place of creation of a private document could be more easily contested. However, neither kind of document provided irrefutable evidence of the correctness of a document's content. Citing examples of the different types of documents accepted in individual cases, the board pointed out that the boards had always accepted public and/or private documents as evidence of the transfer of rights, whether by way of universal succession or a single transfer of assets. The level of proof required was credibility of the facts for which evidence was given, in the light of all circumstances.

The opponent having died, in T.74/00 in the board's view, the best evidence which could be provided was evidence of the relevant law of succession (here, Japanese law) by way of **legal opinion** from a Japanese attorney-at-law; the mere filing of copies of a party's correspondence with his instructing Japanese attorneys could not serve as substitute. In T.205/14 (and T.517/14) Israeli law (applicable) was proved to the satisfaction of the board by an expert opinion provided by the party (right of priority – assignment). In T.1201/14, which also concerned transfer of priority, legal opinions were provided but did not satisfy the board on their merits.